



KENYA

Forest Service

Kenya Forest Service Hqs
Karura, Off Kiambu Rd
P.O. Box 30513 - 00100
Nairobi, Kenya

Ref: No.....PPP/1/KFS/VOL.IV

Date:.....5th March, 2024

Mr. Mathew Ochanda,
Director,
Team Environment Associations,
Norwich Union House, 2nd Floor,
Mama Ngina Street,
P O Box 13495 – 00400,
NAIROBI.

**RE: FRAMEWORK FOR COLLABORATIONS BETWEEN KENYA FOREST SERVICE AND
TEAM ENVIRONMENT ASSOCIATION**

Enclosed herewith, please find **One (1)** copy dully executed framework for
collaboration for your custody and records.

We thank you for partnering with the Kenya Forest Service in this noble initiative.

A.L. Lemarkoko EBS 'ndc' (K)
CHIEF CONSERVATOR OF FORESTS

Ek/rk

Trees for better lives

Tel: (254)020-3754904/5/6, (254)020-2014663, (254)020-2020285, Fax: (254)020-2385374

Email: info@kenyaforestservice.org. Web: www.kenyaforestservice.org



TEAMEnvironment KENYA

FRAMEWORK FOR COLLABORATION

BETWEEN

KENYA FOREST SERVICE

AND

TEAM ENVIRONMENT ASSOCIATION

ON

**ADOPTION OF 6.2 HA (15.3205 Acres) OF DEGRADED FOREST IN
NGONG HILLS FOREST FOR REHABILITATION**

This **FRAMEWORK FOR COLLABORATION** (herein referred to as the "FRAMEWORK") has been made and entered into between:

- I. **KENYA FOREST SERVICE**, a State Corporation established pursuant to the provisions of the Forest Conservation and Management Act, 2016 of P.O. Box 30513 – 00100, Nairobi, Karura, off Kiambu Road (hereinafter referred to as "KFS", which term shall, in so far as the context admits, include its successors and assigns) of the first part and;
- II. **TEAM ENVIRONMENT ASSOCIATION** is an Association duly registered under the Societies Act Cap 108 Laws of Kenya under registration Number: 49119 of P.O. Box 13495 – 00400, Mama Ngina Street, Norwich Union House 2nd Floor.

Hereinafter individually referred to as "**Party**" and collectively as "**Parties**"

WHEREAS-

- a) **KENYA FOREST SERVICE** has a mandate to support the establishment, development, and sustainable management of forests, including conservation, degraded landscape restoration and rational utilization of forest resources for socio-economic development in the Country;
- b) **TEAM ENVIRONMENT ASSOCIATION** is desirous of contributing to long-term environmental conservation in Kenya through Corporate Social Responsibility (CSR) initiatives for sustainable management of forests;
- c) **The Constitution of Kenya 2010, the Kenya Vision 2030, the National Forest Programme**, and other national development blueprints stipulate that tree cover must be increased and maintained to at least 10% of the Country's land area for the forests to continue supporting the growth of the national economy through the supply of forest goods and services;

- d) **The Government of Kenya** is desirous of achieving and attaining 30% national tree cover by planting (growing) 15 Billion Trees by 2032 and has directed that all Government Ministries, Departments, and Agencies endeavour to join in the tree planting (growing) exercise.
- e) The **Ministry of Environment, Climate Change and Forestry** has produced Guidelines for Adoption of a Forest or Part of a Forest for Tree Planting & Maintenance, Protection, and Conservation.
- f) **TEAM ENVIRONMENT ASSOCIATION** has requested to participate in tree planting (growing), land scape restoration and maintenance of part of Ngong Hills - Forest(s) areas under the jurisdiction of the Kenya Forest Service.

NOW THEREFORE in line with the above premises, the Parties have agreed to enter into this framework as guided under the following articles:

ARTICLE 1: OBJECTIVES

The objective of this Framework is for Parties to collaborate in reforestation, protection, and conservation of Ngong Forest Reserve to: -

- 1.1 Support national efforts of achieving and maintaining at least 10% national forest cover.

ARTICLE 2: PURPOSE AND GEOGRAPHICAL SCOPE

- 2.1 The purpose of this Framework for Collaboration is to facilitate collaboration between the Parties, on a non-exclusive basis, in areas of common concern and interest. It shall govern the rights and undertakings of the parties.
- 2.2 The geographical scope of the Framework shall be:

- **Kajiado County:** 6.2 Ha (15.3205 Acres) within Ngong Hills forest Block.

2.3 The area covered under this framework will at all times and for all intents and purposes remain forest land.

ARTICLE 3: AREAS OF COLLABORATION

The Parties hereby establish a strategic partnership and agree to cooperate in the following areas of common concern and interest: -

- 3.1 Implementation of the "Adopt a Forest" Program;
- 3.2 Carrying out environmental conservation activities aimed at rehabilitation of forest ecosystems in the geographical scope of this Framework;
- 3.3 Community sensitization and awareness creation on forest conservation and management;
- 3.4 Promotion of tree growing activities through awareness creation;
- 3.5 Monitoring, evaluation and reporting on the progress of this program; and
- 3.1 Any other activity that KFS and TEAM ENVIRONMENT ASSOCIATION may mutually agree on in writing.

ARTICLE 4: PRINCIPLES OF CO-OPERATION

This FRAMEWORK recognizes the following broad principles:

- 4.1 TEAM ENVIRONMENT ASSOCIATION and KFS will deploy their best endeavours to meet the terms of this Framework;
- 4.2 The Parties intend to assist each other under this Framework to the full extent permitted by the laws, regulations, and rules governing their operations to facilitate the fulfilment of objects of this Framework;
- 4.3 The forest areas to be restored by TEAM ENVIRONMENT ASSOCIATION shall remain public forests under the jurisdiction of KFS at all times;
- 4.4 This Framework shall not create any binding legal obligations between TEAM ENVIRONMENT ASSOCIATION and KFS;

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- 4.5 This Framework does not amount to a delegation of any of the powers, duties, or obligations of KFS;
- 4.6 This Framework does not create, directly or indirectly any rights, obligations, or liabilities enforceable by TEAM ENVIRONMENT ASSOCIATION and KFS or any third party
- 4.7 This Framework does not affect any arrangement under any other MoU, Agreement, Framework, or engagement that KFS has entered into; and
- 4.8 Each of the Parties retains all rights and obligations under their respective existing laws and this Framework will not restrict the statutory prerogative of any Party.

ARTICLE 5: UNDERTAKINGS BY THE PARTIES

5.1 Kenya Forest Service

KFS agrees to undertake the following activities:

- a) Avail 6.2 Ha of degraded forest areas in Ngong Hills Forest Block, for adoption by TEAM ENVIRONMENT ASSOCIATION for rehabilitation (Details of Mapped sites available in **Annex I**);
- b) Provide necessary technical advice and supervise tree planting and maintenance operations in the identified public forest areas;
- c) Provide support as well as facilitate access to planting sites within the adopted sites for the smooth implementation of proposed activities;
- d) Provide requisite security during tree planting;
- e) Provide linkage to Community Forest Associations; and
- f) Administer resources and implement activities outlined in article 5.2 b. in collaboration with Business Registration Service

5.2 TEAM ENVIRONMENT ASSOCIATION

TEAM ENVIRONMENT ASSOCIATION agrees to undertake the following activities:

- a) Mobilize resources for rehabilitation of 6.2 Ha (15.3205 Acres) of degraded forest areas as outlined in article 5.1 a.);
- b) Adopt forest sites jointly identified as set out in **Annex1** and support tree planting, protection and maintenance for three years after planting in each of those sites;
- c) Pay wages and expenditures for all activities accomplished by its employees, agents and/or servants; and
- d) Engage members of the local CFAs in implementation of activities agreed under this Framework;

ARTICLE 6: IMPLEMENTATION

- 6.1 KFS and TEAM ENVIRONMENT ASSOCIATION will be responsible for the implementation of the Framework.
- 6.2 Joint Coordination Committees will be formed at the County level to monitor and report on the activities carried out in fulfilment of this Framework.
- 6.3 The Framework shall be subject to annual review to assess the progress of rehabilitation efforts on the agreed sites.
- 6.4 The Parties will promote co-operation within the framework of the agreed activities above through annual work plans and budget to be drawn up by mutual agreement.
- 6.5 The detailed matters concerning this framework's implementation will be agreed upon through consultation between parties.

ARTICLE 7: LEGAL STATUS

- 7.1 This Framework merely constitutes a statement of the Parties' mutual intentions and is not intended to and shall not create any legal obligations between the Parties.
- 7.2 Public forest areas identified for reforestation/rehabilitation under this Framework shall not cease to be public forests.
- 7.3 This framework does not grant TEAM ENVIRONMENT ASSOCIATION any rights under the Carbon Credit Framework with respect to areas identified for rehabilitation.

ARTICLE 8: RISK, INDEMNITY AND LIABILITY

- 8.1 KFS and TEAM ENVIRONMENT ASSOCIATION shall each indemnify and hold harmless the other party, its officers, agents, and employees, for any and all liability, damages, and costs attributable to the negligent acts or omissions of the indemnifying party, its officers, agents, and employees while acting in the scope of their employment, and in furtherance of activities described in this Framework.
- 8.2 students and interns are not employees or agents of the Parties for purposes of this Framework.

ARTICLE 9: DISPUTE RESOLUTION

- 9.1 Any dispute, questions, or disagreements arising between the Parties with regard to the implementation or application of the provisions of this Framework, including any question regarding its existence, validity, or termination and or implementing arrangement shall be resolved amicably through negotiations and consultations.
- 9.2 Should the parties not reach an agreement within sixty (60) days from the date the conflict is formally raised, the matter shall be referred to the

EDM

Email: director@kenyaforestservice.org

For TEAM ENVIRONMENT ASSOCIATION: -

Mathew Ochanda

Director

P.O. Box 13495 – 00400

NAIROBI, KENYA.

Tel: +254 725 660 204, 732 549 823, 718 052 745

Cell: Email: info@teamenvironment.org ; teamenvironment.ke@gmail.com

Provided that a Party may change its address for notices here above by giving the other Party 14 days prior notice of such change under this Clause.

11.1 Authorized Representatives

The Authorized Representatives for the Parties will comprise the following: -

- a) On behalf of KFS – The Chief Conservator of Forests, through Head of Nairobi and the Ecosystem Conservator Nairobi County.
- b) On behalf of TEAM ENVIRONMENT ASSOCIATION – The Director.

ARTICLE 12: ENTRY INTO FORCE, TERMINATION, AND DURATION

12.1 This Framework shall enter into force on the date of signature by both parties and shall remain in force for a period of **Three (3) years** subject to review based on the successful performance of the objectives and the mutual agreement by the Parties.

12.2 The Framework may be terminated:

- (a) If one party fails to discharge its duties and obligations spelt out in this Framework except in cases of Force Majeure as stipulated herein.
- (b) By either party giving at least a three (3) month notice in writing, to the other party.

- 12.3 Termination shall not affect any ongoing activities undertaken under the Framework. The provisions contained herein shall remain in effect to the extent necessary to permit an orderly settlement of all arrangements made or ongoing initiatives with respect to the ongoing cooperation activities.
- 12.4 Upon expiry of the contractual term stated hereinabove, TEAM ENVIRONMENT ASSOCIATION shall be obligated to vacate from the forest areas covered under this framework.

IN WITNESS WHEREOF, the duly authorized representatives have signed the present Framework for Collaboration.

Dated this.....3RD.....date of.....MARCH.....2024.



MR. MATHEW OCHANDA
DIRECTOR
TEAM ENVIRONMENT
ASSOCIATION



MR. ALEX LEMARKOKO EBS, 'ndc' (K)
CHIEF CONSERVATOR OF FORESTS
KENYA FOREST SERVICE

KENYA FOREST SERVICE
P. O. Box 30513 - 00100,
NAIROBI - KENYA

WITNESSED BY: -

ODUOR BENEDICT ODHIAMBO
ADVOCATE
P. O. Box 62110 - 00100,
NAIROBI

LEGAL OFFICER
TEAM ENVIRONMENT
ASSOCIATION

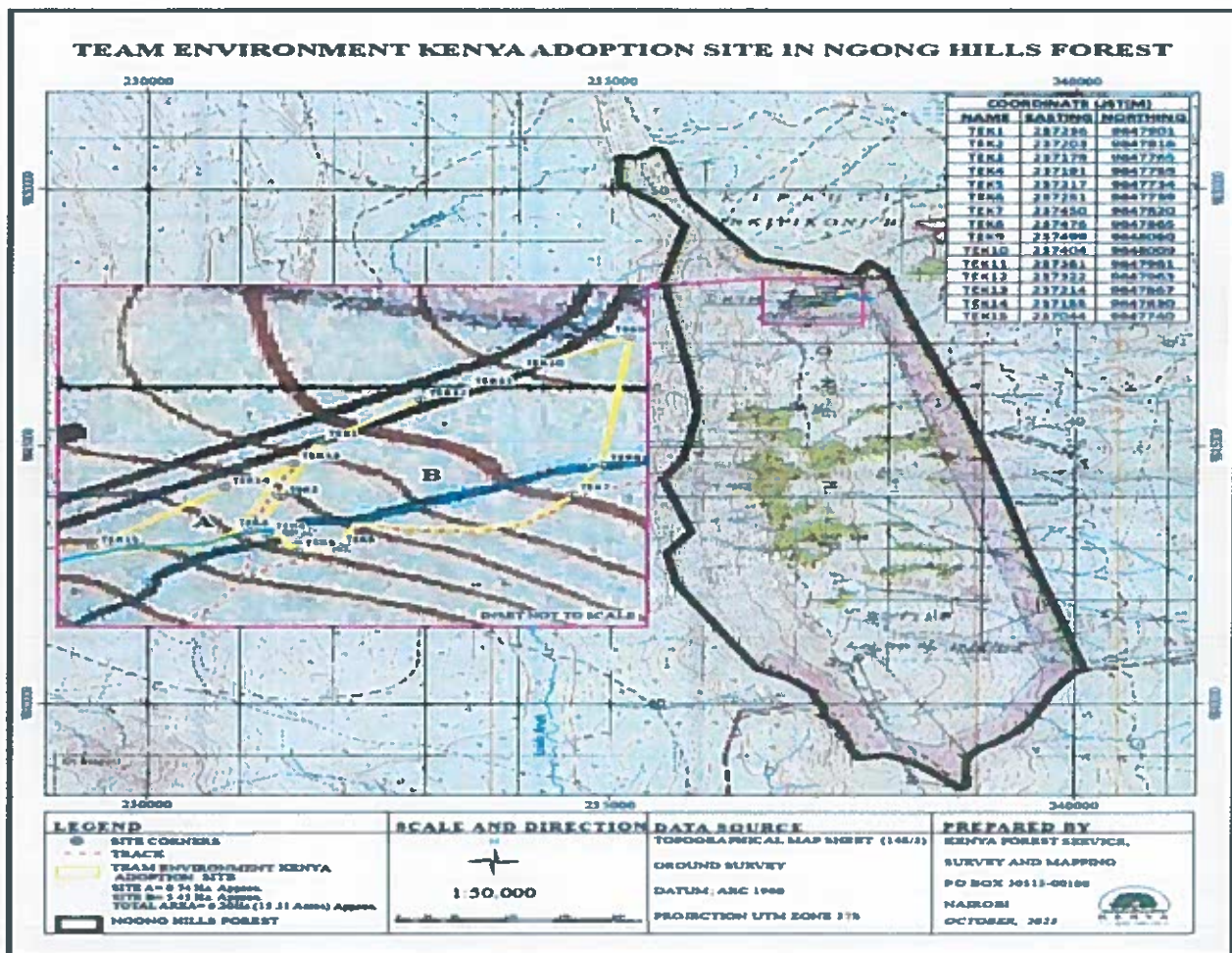


HEAD, LEGAL SERVICES
KENYA FOREST SERVICE

ANNEX 1: MAP OF THE ADOPTED SITES

Mapped Planting Sites in Ngong Forest

Site Name	Forest	Area (Ha)
Ngong Hills Forest Block	Ngong Hills Forest	6.2 (15.3205 Acres)



Handwritten signature